

Ajeet Kumar v. State of U.P. & Others

Allahabad High Court · Division Bench · 11 April 2018 · Writ - C No. 62234 of 2012 · **Writ disposed of; petitioner relegated to the Ombudsman under clause 7.10(iv); delay condoned; no coercive action in the meantime**

HEADNOTE

A consumer aggrieved by non-redressal of his grievance by the Consumer Grievance Redressal Forum may make a representation to the Ombudsman designated or appointed by the Commission under clause 7.10(iv) of the U.P. Electricity Supply Code, 2005, in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulation, 2003. Where the petitioner sought certiorari against a Forum order that had partly allowed his complaint and directed an amended bill, the writ court did not examine that order on merits and left him to that Ombudsman remedy. If a representation is filed within one month, it shall be disposed of in accordance with law; delay in approaching the Ombudsman is condoned; till then no coercive action is to be taken. The writ stands disposed of.

FACTUAL SUMMARY

Ajeet Kumar petitioned the Allahabad High Court for a writ of certiorari to quash an order dated 10 October 2012 of the Chairman, Electricity Consumer Redressal Forum, in Complaint Case No. 8 of 2012 (Ajeet Kumar v. Executive Engineer). The Forum had partly allowed his complaint and directed the respondents to furnish an amended bill, with liberty to pay as per that bill. Notices issued on 3 December 2012. After listings in 2018, the writ was dismissed as infructuous on 12 February 2018 when none appeared for him; on 8 March 2018 a restoration application was allowed and the petition restored.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

Ombudsman representation against a CGRF order

QUESTION

May a consumer challenge a Consumer Grievance Redressal Forum order in writ, or is the remedy a representation to the Ombudsman under clause 7.10(iv)?

HOLDING

The remedy is a representation to the Ombudsman. Clause 7.10(iv) of the U.P. Electricity Supply Code, 2005 provides that a consumer aggrieved by non-redressal of his grievance by the Consumer Grievance Redressal Forum may make a representation to an Ombudsman designated or appointed by the Commission in accordance with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulation, 2003. The writ against the Forum's 10.10.2012 order (Complaint Case No. 8 of 2012, partly allowed with a direction to furnish an amended bill) was disposed of on that alternative remedy. If the petitioner files a representation within one month, it shall be disposed of in accordance with law; delay in approaching the Ombudsman is condoned; till then no coercive action may be taken. ¶ 11.4.2018

FLAG Multi-order eight-page PDF. Operative unnumbered order dated 11.4.2018 (Bharati Sapru and Saral Srivastava, J.J.). Earlier pages are listing (3.12.2012, 10.1.2018, 18.1.2018, 5.2.2018), a 12.2.2018 dismissal as infructuous later recalled, and restoration on 8.3.2018. The Forum is styled 'Electricity Consumer Redressal Forum' (Chairman).

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ against the 10.10.2012 Forum order was disposed of because clause 7.10(iv) afforded a representation to the Ombudsman; the Court did not examine the Forum order on merits. ¶ 11.4.2018

clause-7.10-forum-ombudsman-route-for-billing-grievances Counsel for the electricity respondents pointed to clause 7.10(iv) as the route to the Ombudsman after the Forum had partly allowed the complaint with an amended-bill

direction; the petitioner was left to file a representation within one month, delay condoned. ¶ 11.4.2018

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CGRF ORDER DATED 10.10.2012 AND OF THE AMENDED-BILL DIRECTION

Left to a representation before the Ombudsman under clause 7.10(iv), to be disposed of in accordance with law if filed within one month. ¶ 11.4.2018

NOT DECIDED — WHETHER THE PETITIONER'S GRIEVANCE HAD ALREADY BEEN REDRESSED BY EFFLUX OF TIME

The 12.2.2018 Bench had dismissed the writ as infructuous on that speculation; that order was recalled on 8.3.2018, and the 11.4.2018 Bench did not decide the point. ¶ 12.2.2018

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.